

HEADNOTE

- “1. Under Article 28 UPCA, the user of the technology according to the invention may only rely on the rights granted to him by the respective national provisions of the respective contracting member states. Proceeding from this, the existence of a prior user right must be asserted for each of the protected contracting states.*
- 2. The request for disclosure of books regulated in Article 68 UPCA in conjunction with Rule 131.1 (c) and Rule 141 RoP is part of the proceedings for determining the amount of damages awarded and, where applicable, precedes the quantified damages claim in those proceedings. An obligation to disclose books in infringement proceedings is therefore excluded.*
- 3. Article 68(3)(a), (b) UPCA in conjunction with Rule 191 sentence 1 alternative 2 RoP confer substantive entitlement to request information already in infringement proceedings, which the claimant needs in order to verify the accuracy of the information provided and to obtain information for its damages calculation. In substance, such a request is directed at information concerning the cost factors on which the defendant relies in calculating its profits. Furthermore, within the scope of this right to information, the patent proprietor may also demand submission of evidence for the information under Article 67(1) UPCA, namely invoices or, if these are not available, alternatively delivery notes.*
- 4. Final removal from the channels of commerce is an independent measure, separate from the recall. It flanks the recall, with removal only being appropriate if the infringer has the factual and legal means to do so. The formulation of concrete and sufficiently determined measures must be aligned with this.*
- 5. A request for subsequent extension of a time limit must be filed no later than together with the substantive argument for which the party seeks the retroactive extension of the time limit. If such a request is submitted belatedly, it is in principle without prospect of success from the outset.”*

COURT
Local Division in Düsseldorf

PROCEEDINGS
Infringement action

PATENT
EP 3 375 337 B1

SANITATION BATH TUB DEVICE

KEYWORDS

prior user right

indirect patent infringement

definitive removal from channels of distribu...

right to disclosure of books

right to information

submission of evidence

subsequent extension of time limit

Article 28 Right based on prior use of the invention

SUMMARY

The Local Division in Düsseldorf ruled on an infringement action. The patent at issue relates to a sanitation bath tub device. According to the headnotes of the decision, prior user rights must be asserted separately in each protected contracting state. Disclosure of books in infringement proceedings is excluded under the relevant rules. However, the patent proprietor may request information during infringement proceedings to verify accuracy and calculate damages. This right extends to cost factors and supporting evidence such as invoices or delivery notes. Furthermore, final removal from channels of commerce is a separate measure distinct from product recall. The infringer must possess both factual and legal ability to implement such removal measures. Additionally, concrete and sufficiently determined removal measures must be carefully formulated to align with these requirements. A request for retroactive extension of time limits must be filed together with the substantive argument it supports, or it will likely fail.